

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW REARDON

v.

STATE OF MISSISSIPPI

)
) NO. L20-316
) 1K-20
)

LAFAYETTE COUNTY
FILED

AUG 10 2020

JEFF BUSBY
CIRCUIT CLERK

BY: CMS D.C.

MOTION FOR REHEARING UNDER MISSISSIPPI RULE 59

BEFORE THE HONORABLE JUDGE KENT SMITH

Comes now before the court Matthew Reardon, your petitioner/plaintiff and appeals back to this court a motion for rehearing under MS rule 59 and would state unto the court the following facts:

- 1) That on July 7, 2020 a motion for post conviction relief was filed with this court, the trial court, asking for this court to vacate and set aside his guilty plea entered on July 7, 2017 on the following permitted grounds pursuant to MS Code 99-39-5 (Mississippi Uniform Post-Conviction Relief Collateral Act):
 - A) That the respondent was in direct violation of petitioner's 1st, 8th, and 14th constitutional rights at the time the plea was given.
 - B) That Petitioner's Guilty plea was involuntary due to a denial of his due process rights as guaranteed by the United States and State of Mississippi Constitutions, thus making his plea of guilty a violation of the laws of the State of Mississippi
 - C) That Petitioner received inadequate representation by his legal counsel on record, in which adequate counsel representation likely would have resulted in an outright dismissal of the State's charge. Furthermore petitioner only met with his legal council one time and no discovery motion was ever requested by Petitioner's legal council.

D) That the state has refused to comply with a Freedom of Information Act Request for information regarding the phone call received on May 24, 2017 which through the state's own admission on a more recent public records request ultimately led to the charge being levied against the petitioner.

E) That there exists additional evidence of material facts, not reasonably discoverable at the time involuntary plea was given and not previously presented and heard, which requires vacation of the conviction or sentence in the interest of justice.

- 2) That on July 30, 2020 Circuit Court Judge Kelly Luther **DENIED** petitioner's motion for relief which was brought with merit, in good timing, and in the correct court and jurisdiction.
- 3) Petitioner alleges that his post-conviction relief motion was prejudicially denied with biasness and favorability shown to the respondent, as the grounds on which post-conviction relief was brought along with the alleged fraud conducted by the State and Lafayette County not only warrant but should in fact be interpreted as prejudicial against the petitioner for refusing to hold an evidentiary hearing on the facts and both the states willful refusal and obstructionist tactics in refusing to comply with a FOIA/Public Information Request for the key evidence the state used to compel its warrant and charge
- 4) That Judge Kelly Luther was made aware of these facts before the PCR was filed and there is a conflict of interest in said case calling for a response and recusal

I, Matthew Reardon petition this court for an evidentiary hearing of facts pursuant to MS rule 59 on this 10th Day of August, 2020`